

25STCV32139 25STCV32139

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 25STCV32139 Hearing Date: July 15, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 11:19 AM on July 14, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 14, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

The

complaint alleges that Plaintiff was illegally parked across a driveway.

He received a parking ticket and his car

was towed with his dog inside for 5 hours. The tow truck driver opened the car door and the dog escaped. When Plaintiff returned to find the car gone, he worried about

the dog. Plaintiff heard cars beeping and whistled for the dog. The dog, unharmed, came running to the Plaintiff. Plaintiff seeks damages and injunctive relief.

Defendant Towwerks, LLK, erroneously sued herein as Viertel's Towing and Defendant City of Los Angeles separately demur to the First Amended Complaint.

TENTATIVE RULING

Defendant Towwerks' demurrer to the First Amended Complaint is SUSTAINED without leave to amend as to the first and second causes of action.

Defendant City of Los Angeles' demurrer to the First Amended Complaint is SUSTAINED without leave to amend as to the third and fourth causes of action.

While the Court has denied leave to amend in connection with these demurrers, the motion for leave to file a Second Amended Complaint will remain set for hearing on the July 29, 2026 calendar. The Court in its discretion will determine at that time whether leave to file the Second Amended Complaint should be granted despite the Court's warning that the First Amended Complaint was Plaintiff's final opportunity.

ANALYSIS

Defendant Towwerks, LLC's Demurrer

Request For Judicial Notice

Defendant's request that the Court take judicial notice of the Complaint filed in this action on November 4, 2025 is GRANTED per Evid. Code § 452(d)(court records).

Meet and Confer

The Declaration of Lawrence E. Heller reflects that Plaintiff did not respond to meet and confer efforts. This satisfies Code Civ. Proc. § 430.41(a)(3)(B).

Discussion

Defendant

Towwerks, LLC, demurs to the First Amended Complaint as follows:

1. First

Cause of Action (Negligence).

Defendant

invokes the sham pleading doctrine to argue that Plaintiff judicially admitted in his original Complaint that neither he nor his dog suffered harm.

“Under the sham-pleading doctrine, admissions in an original complaint that has been superseded by an amended pleading remain within the court’s cognizance and the alteration of such statements by amendment designed to conceal fundamental vulnerabilities in a plaintiff’s case will not be accepted. (Deveny v. Entropin, Inc. (2006) 139 Cal.App.4th 408, 425–426, fn. 3 [42 Cal. Rptr. 3d 807] [If a party files an amended pleading and attempts to avoid defects of original complaint by either omitting facts that rendered prior complaint defective or adding facts inconsistent with prior allegations, court may take judicial notice of prior pleadings and disregard inconsistent allegations or read into amended complaint the allegations of the superseded complaint.]; citations omitted.)

(Lockton v. O’Rourke (2010) 184 Cal.App.4th 1051, 1061.)

Defendant

argues that, based upon Plaintiff’s earlier admission, he has not alleged recoverable damages arising from negligence.

To prevail in an action for negligence, the plaintiff must demonstrate that the defendant owed a duty to the plaintiff, that the defendant breached that duty, and that the breach proximately caused the plaintiff’s injuries. (Citation omitted.)

(John B. v. Superior Court (2006)
38 Cal.4th 1177, 1188.)

However, “to recover damages for emotional distress on a claim of negligence where there is no accompanying personal, physical injury, the plaintiff must show that the emotional distress was “serious.” (Citations omitted.) . . . “[S]erious mental

distress may be found where a reasonable man, normally constituted, would be unable to adequately [*1378] cope with the mental stress engendered by the circumstances of the case.' [Citation.]" (Citation omitted.)" (Citation omitted.) (Wong v. Jing (2010) 189 Cal.App.4th 1354, 1377-78.)

[B]ecause the [*156] only injury Wilson claimed in her lawsuit was emotional distress, she was required to show that Edison's breach threatened physical injury to her. (See Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 984-985 [25 Cal. Rptr. 2d 550, 863 P.2d 795] (Potter) ["[T]here is no independent tort of negligent infliction of emotional distress. [Citation.] The tort is negligence, a cause of action in which a duty to the plaintiff is an essential element. [Citations.] That duty may be imposed by law, be assumed by the defendant, or exist by virtue of a special relationship."].) "[U]nless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests." (Potter, supra, 6 Cal.4th at p. 985.) Thus, at the very least, there could not have been a breach of duty during the period when no shocks were felt on the property.

(Wilson v. Southern California Edison Co. (2015) 234 Cal.App.4th 123, 155-156.)

Here, Plaintiff admitted in the original Complaint that he was not present when his dog was released from the vehicle. Plaintiff also admitted that he and his dog were reunited with neither having suffered physical injury. A reasonable person would not suffer serious emotional distress from temporarily worrying about his dog and being reunited with the dog after a few moments of uncertainty. (Wong, supra, 189 Cal.App.4th at 1377-78.) As such, under the sham pleading doctrine, Plaintiff's omission of these prior admissions does not save this cause of action.

The demurrer to the first cause of action is SUSTAINED without leave to amend. Plaintiff was previously warned he would only be given one final opportunity to amend. That opportunity has now been exhausted. The Court will address Plaintiff's upcoming motion for leave to file a Second Amended Complaint below.

2. Second

Cause of Action (Wrongful Towing/Conversion).

Defendant

argues that in the second cause of action it is alleged that the car was towed “without lawful justification” (paragraph 1 of second cause of action), but that claim fails to allege why the towing was not legally justified. Indeed, again in Plaintiff’s initial complaint he alleges that he “agreed with the ticket” underlying the towing because “his van was illegally parked and blocking a driveway” (page 1 lines 9 to 11 of initial complaint). As shown above, Plaintiff is bound by that allegation which admits that there was a “lawful justification” for the towing.

Defendant

argues that the 1AC does not allege that Defendant engaged in a wrongful act or disposition of the plaintiff’s property rights.

“Conversion is the wrongful exercise of dominion over the property of another.” (Citation omitted.) Proof of conversion requires a showing of ownership or right to possession of the property at the time of the conversion, the defendant’s conversion by a wrongful act or disposition of property rights, and resulting damages. (Citations omitted.)

(Avidor v. Sutter’s Place, Inc. (2013) 212 Cal.App.4th 1439, 1452.)

The sufficiency of plaintiff’s allegations turns on whether the facts he alleged show Towing Company’s possession of the truck was wrongful. (5 Witkin, Cal. Procedure (5th ed. 2008) Pleading, § 692, p. 110 [the “wrongful exercise of dominion over the personal property of another, whether it involves wrongful taking or lawful taking and wrongful withholding, constitutes the tort of conversion”].)

(Halajian v. D & B Towing
(2012) 209 Cal. App. 4th 1, 9 [bold emphasis added].)

As argued by Defendant, in the original Complaint, Plaintiff admitted that the ticket was rightfully issued and also that he was blocking the driveway. (Original Complaint, Page 2:1-11.) Plaintiff has just admitted that the towing was justified because he was blocking the driveway.

The 1AC alleges at Page 3:7 re: the conversion

cause of action that he is entitled to return of property and damages. This suggests that he has not yet received a return of his vehicle. Yet, Plaintiff did not allege that he paid the sum required to release the vehicle in accordance with Civ. Code § 3068.1(a)

(a)

(1) Every person has a lien

dependent upon possession for the compensation to which the person is legally entitled for towing, storage, or labor associated with recovery or load salvage of any vehicle subject to registration that has been authorized to be removed by a public agency, a private property owner pursuant to Section 22658 of the Vehicle Code, or a lessee, operator, or registered owner of the vehicle. The lien is deemed to arise on the date of possession of the vehicle. Possession is deemed to arise when the vehicle is removed and is in transit, or when vehicle recovery operations or load salvage operations have begun. A person seeking to enforce a lien for the storage and safekeeping of a vehicle shall impose no charge exceeding that for one day of storage if, 24 hours or less after the vehicle is placed in storage, the vehicle is released. If the release is made more than 24 hours after the vehicle is placed in storage, charges may be imposed on a full-calendar-day basis for each day, or part thereof, that the vehicle is in storage. If a request to release the vehicle is made and the appropriate fees are tendered and documentation establishing that the person requesting release is entitled to possession of the vehicle, or is the owner's insurance representative, is presented within the initial 24 hours of storage, and the storage facility fails to comply with the request to release the vehicle or is not open for business during normal business hours, then only one day's charge may be required to be paid until after the first business day. A "business day" is any day in which the lienholder is open for business to the public for at least eight hours. If the request is made more than 24 hours after the vehicle is placed in storage, charges may be imposed on a full-calendar-day basis for each day, or part thereof, that the vehicle is in storage.

(Civ. Code § 3068.1(a)[bold emphasis added].)

Moreover,

Vehicle Code § 22651.07 provides as follows:

(a) A person, including a

law enforcement agency, city, county, city and county, the state, a tow yard, storage

facility, or an impounding yard, that charges for towing or storage, or both, shall do all of the following:

. . .

(b) Prior to receiving payment

for any towing, recovery, or storage-related fees, a facility that charges for towing or storage, or both, shall provide an itemized invoice of actual charges to the vehicle owner or his or her agent. If an automotive repair dealer, registered pursuant to Article 3 (commencing with Section 9884) of Chapter 20.3 of Division 3 of the Business and Professions Code, did not provide the tow, and passes along, from the tower to the consumer, any of the information required on the itemized invoice, pursuant to subdivision (g) the automotive repair dealer shall not be responsible for the accuracy of those items of information that remain unaltered.

(c) Prior to paying any towing,

recovery, or storage-related fees, a vehicle owner or his or her agent or a licensed reposessor shall, at any facility where the vehicle is being stored, have the right to all of the following:

(1) Receive his or her personal

property, at no charge, during normal business hours. Normal business hours for releasing collateral and personal property are Monday through Friday from 8:00 a.m. to 5:00 p.m., inclusive, except state holidays.

(2) Retrieve his or her vehicle

during the first 72 hours of storage and not pay a lien fee.

(3)

(A) Inspect the vehicle without

paying a fee.

(B) Have his or her insurer

inspect the vehicle at the storage facility, at no charge, during normal business hours. However, the storage facility may limit the inspection to increments of 45 consecutive minutes in order to provide service to any other waiting customer, after which the insurer may resume the inspection for additional increments of 45 consecutive minutes, as necessary.

(4) Request a copy of the
Towing and Storage Fees and Access Notice.

(5) Be permitted to pay by
cash, insurer's check, or a valid bank credit card. Credit charges for towing and
storage services shall comply with Section 1748.1 of the Civil Code. Law enforcement
agencies may include the costs of providing for payment by credit when agreeing
with a towing or storage provider on rates.

(d) A storage facility shall
be open and accessible during normal business hours, as defined in subdivision (c).
Outside of normal business hours, the facility shall provide a telephone number
that permits the caller to leave a message. Calls to this number shall be returned
no later than six business hours after a message has been left.

(Veh. Code § 22651.07(a) – (d).)

Plaintiff had an opportunity to plead
conversion, i.e. wrongful withholding because Plaintiff had met the requirements
for release set forth in Civil Code § 3068 and Vehicle Code § 22651.07(a) (d). However, Plaintiff failed to do so on this,
his final opportunity to amend.

As such, the demurrer to the second cause
of action is SUSTAINED without leave to amend. Plaintiff was previously warned he would only be given one
final opportunity to amend. That opportunity has now been exhausted. The Court will
address Plaintiff's upcoming motion for leave to file a Second Amended Complaint
below.

Defendant City of Los Angeles's
Demurrer

Request For Judicial Notice

Defendant's
request that the Court take judicial notice of the Complaint filed in this action
on November 4, 2025 is GRANTED per Evid. Code § 452(d)(court records).

Meet and Confer

The

Declaration of Carr A. Tekosky reflects

that Defendant's counsel satisfied the meet and confer requirement set forth in Civ. Proc. Code, § 430.41.

Discussion

Defendant

City of Los Angeles demurs to the First Amended Complaint as follows:

1. Third

Cause of Action (Retaliation/Violation of Due Process).

Defendant

argues that the 1AC fails to demonstrate that the Parking Enforcement Officer had any knowledge of Plaintiff's alleged complaints. As such, Plaintiff has failed to state facts sufficient to constitute a cause of action for retaliation.

Defendant

cites Tichinin for the elements of a retaliation claim under 42 USC § 1983:

In general, to succeed

on his 1983 action, Tichinin had to prove that (1) the conduct he complained of was committed by a person "acting under color of state law"; and (2) "this conduct deprived a person of rights, privileges, or immunities secured by the Constitution or laws of the United States." (*Paratt v. Taylor* (1981) 451 U.S. 527, 535 [68 L. Ed. 2d 420, 101 S. Ct. 1908], overruled on other grounds in *Daniels v. Williams* (1986) 474 U.S. 327, 330–331 [88 L. Ed. 2d 662, 106 S. Ct. 662]; see *American Mfrs. Mut. Ins. v. Sullivan* (1999) 526 U.S. 40, 49–50 [143 L. Ed. 2d 130, 119 S. Ct. 977]; *Vergos v. McNeal*, *supra*, 146 Cal.App.4th at p. 1402.)

Where, as here, the

plaintiff claims retaliation for exercising a constitutional right, the majority of federal courts require the plaintiff to prove that (1) he or she was engaged in constitutionally protected activity, (2) the defendant's retaliatory action caused the plaintiff to suffer an injury that would likely deter a person of ordinary firmness from engaging in that [*1063] protected activity, and (3) the retaliatory action was motivated, at least in part, by the plaintiff's protected activity. (Citations omitted.)

(*Tichinin v. City of Morgan Hill* (2009) 177 Cal.App.4th 1049, 1062-63 [bold

emphasis added].)

Not

only does Plaintiff fail to allege the above elements, but more fundamentally, a 42 USC § 1983 claim does not lie against a local government for an employee's conduct:

Section 1983 does not assign liability to a local government under a respondeat superior theory, but the entity may be liable if the constitutional [*1016] violation was caused by its official policy, practice, or custom. (Citation omitted.)

(*Kerkeles v. City of San Jose* (2011) 199 Cal.App.4th 1001, 1015-16 [bold emphasis added]).)

Local governments have no liability under 42 United States Code section 1983 simply because their employees may have violated a plaintiff's constitutional rights; the doctrine of respondeat superior does not apply. (Citation omitted.) No punitive damages can be awarded against a public entity. (*City of Newport v. Fact Concerts, Inc.* (1981) 453 U.S. 247, 271 [101 S. Ct. 2748, 2762, 69 L. Ed. 2d 616]).

The United States Supreme Court has carved out a limited area of direct municipal responsibility "if the deprivation of rights was caused by an official policy or custom of the county, set by the county's lawmakers or by an official who speaks with final policymaking authority for the county." (Citation omitted.) At most, Monell liability adds an additional defendant, a municipality, to the universe of actors who will be jointly and severally liable for the award.

Entity liability may arise in one of two forms. The municipality may itself have directed the deprivation of federal rights through an express government policy. This was the situation in *Monell*, where there was an explicit policy requiring pregnant government employees to take unpaid leaves of absence before such leaves were medically required. (Citation omitted.)

Alternatively, the municipality may have in place a custom or practice so widespread in usage as to constitute the functional equivalent of an express policy. Pattern or practice lawsuits involve far-reaching inquiries into how police departments train and discipline their officers. The Supreme Court has viewed them skeptically: "Rigorous standards of culpability and causation must be applied" to ensure that the municipality, through culpable misconduct, was the "moving force"

behind the injury alleged. (Citation omitted.)

(Choate v. County
of Orange (2000) 86 Cal.App.4th 312, 328 [bold emphasis and underlining added].)

Plaintiff does not allege that Defendant
City adopted an official policy or custom which was retaliatory toward Plaintiff.

Defendant
also argues that Vehicle Code § 22852 provides due process in the form of an opportunity
for a post-storage hearing to determine the validity of the storage." Veh. Code
§ 22852(a). This is the due process afforded, and Plaintiff's FAC does not demonstrate
that Plaintiff sought such relief.

Vehicle Code § 22852
provides:

(a) Whenever an authorized
member of a public agency directs the storage of a vehicle, as permitted by this
chapter, or upon the storage of a vehicle as permitted under this section (except
as provided in subdivision (f) or (g)), the agency or person directing the storage
shall provide the vehicle's registered and legal owners of record, or their agents,
with the opportunity for a poststorage hearing to determine the validity of the
storage.

(b) A notice of the storage
shall be mailed or personally delivered to the registered and legal owners within
48 hours, excluding weekends and holidays, and shall include all of the following
information:

(1) The name, address, and
telephone number of the agency providing the notice.

(2) The location of the place
of storage and description of the vehicle, which shall include, if available, the
name or make, the manufacturer, the license plate number, and the mileage.

(3) The authority and purpose
for the removal of the vehicle.

(4) A statement that, in order to receive their poststorage hearing, the owners, or their agents, shall request the hearing in person, writing, or by telephone within 10 days of the date appearing on the notice.

(c) The poststorage hearing shall be conducted within 48 hours of the request, excluding weekends and holidays. The public agency may authorize its own officer or employee to conduct the hearing if the hearing officer is not the same person who directed the storage of the vehicle.

(d) Failure of either the registered or legal owner, or his or her agent, to request or to attend a scheduled hearing shall satisfy the poststorage hearing requirement.

(e) The agency employing the person who directed the storage shall be responsible for the costs incurred for towing and storage if it is determined in the poststorage hearing that reasonable grounds for the storage are not established.

(Veh.
Code § 22852(a) – (e).)

The procedure for a post-towing hearing set forth in Vehicle Code § 22852 satisfies due process:

Plaintiff first claims that the City's action in towing his car without notice violates his right to due process. A claim of a deprivation of property in violation of the constitutional right to procedural due process is evaluated pursuant to the standard articulated by the Supreme Court in *Mathews v. Eldridge*, 424 U.S. 319, 333, 47 L. Ed. 2d 18, 96 S. Ct. 893 (1976). "To determine what procedures are required, we balance the competing government and private interests." *Scofield v. City of Hillsborough*, 862 F.2d 759, 762 (9th Cir. 1988) (citing *Mathews*, 424 U.S. at 334).

Several courts have discussed the question of whether notice or a hearing is required prior to towing of an illegally parked car. All have reached the same result: no notice or hearing is required. *Scofield*, 862 F.2d at 762-64 (9th Cir.

1988) (citing with approval cases from the Fourth, Fifth, Seventh, Eighth, and D.C.

Circuits, which all held that no notice or hearing was required prior to towing

an illegally parked car, and holding that no notice or hearing was required [*5] in the analogous situation of towing an unregistered

vehicle). Moreover, even if it were plaintiff's contention that his car was not

illegally parked, his right to a post-towing hearing under California Vehicle Code

§ 22852 adequately protects his right to procedural due process. *Id.*

at 764 ("Such procedures ensure that any erroneous deprivation of an owner's vehicle will be slight, and satisfies due process concerns." (citations omitted)).

(*Le v. Dep't of Parking & Traffic of San Francisco* (N.D. Cal. 2005) 2005

U.S. Dist. LEXIS 1224, *4-5 [bold emphasis added].)

We are satisfied that the

hearing procedure provided by section 22852 adequately reconciles the competing

interests of the parties: the private interest in avoiding the cost and disruption

entailed by impoundment of one's automobile; the relatively low risk of erroneous

deprivation given the straightforward nature of most of the determinant factors;

and the governmental interest in efficiently and effectively keeping the most dangerous

drivers off the road. Accordingly, the impound scheme does not violate due process.

(*Alviso v. Sonoma County Sheriff's Dept.* (2010) 186 Cal.App.4th 198, 214.)

See also *Goichman v. Rheuban Motors, Inc.* (9th Cir.

1982) 682 F.2d 1320, 1325 [hearing held within 48 hours of towing under Vehicle Code § 22852 satisfies due process requirement

of prompt redress].)

A peace officer, as

defined in Chapter 4.5 (commencing with Section 830) of Title 3 of Part 2 of the

Penal Code, or a regularly employed and salaried employee who is engaged in directing

traffic or enforcing parking laws and regulations of a city, county, or jurisdiction

of a state agency in which a vehicle is located may remove a vehicle located within

the territorial limits in which the officer or employee may act, under the following

circumstances:

. . .

(d) If a vehicle is

illegally parked so as to block the entrance to a private driveway, and it is impractical

to move the vehicle from in front of the driveway to another point on the highway.

...

(Veh. Code § 22651(d).)

As noted above, re: Towwerks' demurrer, in Plaintiff's initial complaint he alleges that he "agreed with the ticket" underlying the towing because "his van was illegally parked and blocking a driveway" (page 1 lines 9 to 11 of initial complaint). As shown above, under the sham pleading doctrine, Plaintiff is bound by that allegation which admits that there was a "lawful justification" for the towing.

For the foregoing reasons, Plaintiff has not sufficiently pled a cause of action for retaliation/violation of due process. As such, the demurrer to the third cause of action is SUSTAINED without leave to amend. Plaintiff was previously warned he would only be given one final opportunity to amend. That opportunity has now been exhausted. The Court will address Plaintiff's upcoming motion for leave to file a Second Amended Complaint below.

2. Fourth

Cause of Action (Negligence/Gross Negligence).

Defendant

argues that this cause of action is not based upon statutory liability.

The

1AC does not allege a statutory basis for liability against the City for negligence/gross negligence.

Of course there is no common law tort liability

for public entities in California; such liability is wholly statutory. (Citations omitted.) Under the California Tort Claims Act, Government

Code section 810 et seq., "[e]xcept as otherwise provided by statute ... [¶] ... [a]

public entity is not liable for an injury, whether such injury arises out of an

act or omission of the public entity or a public employee or any other person."

(Gov. Code, § 815, subd. (a).) Government Code section 815 thus "abolishes all common law or judicially declared forms of liability

for public entities, except for such liability as may be required by the state or

federal constitution.” (Legis. Com. com., 32 West's Ann. Gov. Code (1995 ed.) foll. § 815, p. 167.)

. . . Consequently, the Public Entity Defendants may be held liable only if there is a statute subjecting them to civil liability. (Citation omitted.) In the absence of such a statute, a public entity's sovereign immunity bars the suit. (Citation omitted.)

(In re Groundwater Cases (2007)
154 Cal.App.4th 659, 688.)

Thus, “to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity.” (Citations omitted.)

(Lopez v. Southern Cal. Rapid Transit
Dist. (1985) 40 Cal.3d 780, 795.)

As

such, the demurrer to the fourth cause of action is SUSTAINED without leave to amend. Plaintiff was previously warned he would only be given one final opportunity to amend. That opportunity has now been exhausted. The Court will address Plaintiff's upcoming motion for leave to file a Second Amended Complaint below.

Leave

To Amend

The

Court is aware that Plaintiff has a motion for leave to file a Second Amended Complaint set for hearing on July 29, 2026. While the Court has denied leave to amend in connection with these demurrers, the motion for leave to file a Second Amended Complaint will remain on calendar. The Court in its discretion will determine at that time whether leave to file the Second Amended Complaint should be granted despite the Court's warning that the First Amended Complaint was Plaintiff's final opportunity.